

NOTICE TO OFFERORS- REV 1

SF-1442 INFORMATION

Item 11: COMPLETION DATE: Work shall be completed on or before the date specified in FAR 52.211-10.

Item 12A: PERFORMANCE AND PAYMENT BONDS: See FAR Clause 52.228-15 Performance and Payment Bonds-Construction.

Item 14: NAME AND ADDRESS OF OFFEROR: SAM UEI number shall be included in addition to the name and address.

Item 19: ACKNOWLEDGMENT OF AMENDMENTS: FAILURE TO ACKNOWLEDGE AMENDMENTS, IN ITEM 19 OF THE SF-1442, BY THE DESIGNATED DATE AND HOUR SPECIFIED IN THE SOLICITATION MAY RESULT IN REJECTION OF YOUR BID. If amendments are issued, they will be posted to www.beta.sam.gov.

Item 24: SUBMITTING INVOICES: Invoices must be comply with FAR 52.232-5, Payments under Fixed Price Construction Contracts, and submitted electronically using the Invoice Processing Platform (IPP) via www.IPP.gov.

I. PRE-BID INFORMATION

ELECTRONIC BID SUBMISSION. Submit an electronic copy of your BID package to steven.alves@usda.gov/cc: adam.doyle@usda.gov with the following documents:

- ☐ SF-1442, Solicitation, Offer & Award, Pages 1 and 2
 - o Acknowledge any amendments
- ☐ B.1 SCHEDULE OF ITEMS
- ☐ Annual Representations and Certifications (FAR Provision 52.204-8), Representation Regarding Certain
 - o Telecommunications and Video Surveillance Services or Equipment (FAR Provision 52.204-24), and Certification
 - o Regarding Responsibility Matters (FAR Provision 52.209-5). Section K of this solicitation.

II. Award Intention. This is a Invitation for Bid (IFB) which will result in award of a firm-fixed price contract. Award will be made using a Lowest Price, responsive/responsible evaluation. The USDA-FS intends to award only one (1) Firm Fixed Price contract.

Schedule and Deadlines:

Site Visit: 10 Mar 2026, 1000CT. Offerors are highly encouraged to attend the site visit. Meet at the entrance gate to Lake Wedington Rec Area (west of Fayetteville, AR - off AR State Hwy 16). USFS Point of Contact is Danny Sims (479) 223-2176, danny.sims@usda.gov. RVSP is requested by 07 Mar 2026 so we don't leave anyone behind!!!

Questions Deadline: 27 Mar 2026. Questions shall be submitted via email to steven.alves@usda.gov; cc: adam.doyle@usda.gov and are due no later than March 27th, 2026. The subject line should read: 12445126B0010 QUESTION.

Bids Deadline: 13 Apr 2026 - 1000 CT. All bids shall be received by 1000 CT and emailed to steven.alves@usda.gov cc: adam.doyle@usda.gov. Subject Line: 12445126B0010 BID_Co. Name

Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 90 calendar days from the date specified for receipt of offers.

Period of Performance: 160 days after award/Completion no later than 30 Sep 2026

It is the contractor's responsibility to ensure their BID is received by the government. The contractor can call 849-745-3131 to confirm receipt. This acknowledgment SHALL NOT be used to confirm your BID could be opened and read. Your email with the PDF attached will be deposited in a secure USDA-FS file and SHALL NOT BE REVIEWED FOR COMPLIANCE WITH THIS IFB PRIOR TO OPENING. ANY/ALL ATTACHMENTS WILL REMAIN UNOPENED UNTIL THE TIME DESIGNATED IN THIS IFB.

This solicitation and the subsequent contract are governed by the Federal Acquisition Regulations (FAR), agency supplemental regulations, and the drawings, specifications, and data attached. Applicable FAR provisions and clauses in this RFQ are incorporated by reference or full text. FAR provisions and clauses incorporated by reference can be accessed on the Internet at:
<https://www.acquisition.gov/browse/index/far>.

It is the responsibility of the offerer to verify that this solicitation document, including the plans, are complete as listed in the table of contents and the index to sheets. Plan sheets are attached to the email solicitation.

NOTICE OF SAM.REGISTRATION—offerers must be registered and ACTIVE in the System for Award Management (SAM) prior to submission of a BID in response to this solicitation. Failure to register prior to submission of a BID may require award to the next successful registered offerer. See FAR Subpart 4.1102. Register on-line at www.sam.gov. (SAM is an official website of the U.S. government. There is no cost to use SAM. You can use this site for FREE to register to do business with the U.S. government.).

Representations and Certifications—This solicitation is issued under NAICS 2237110 - Water and Sewer Line and Related Structures Construction with a small business size standard of \$45 million. If your average annual gross receipts for the past 5 years are above \$45 million, your organization is considered a large business for the purposes of this solicitation. Please complete the certification listed in paragraph (b) of FAR Provision 52.204-8 Annual Representation and Certifications. Offerers must certify small business status for NAICS 237110 in SAM. Before submitting a BID, please ensure you have completed annual representations and certifications electronically in SAM at www.sam.gov.

Modifications to quotes - quotes may be modified or withdrawn by electronic commerce (email) if such notice is received prior to the time specified for receipt of quotes. The Government will not be responsible for ANY failure attributable to the transmission or receipt of electronic commerce (email) data. For all modifications, the Government STRONGLY ENCOURAGES offerers to resubmit the entire BID schedule with a unit price and amount for every BID item, and a Schedule Total. Modifications which make the BID ambiguous, indefinite, or uncertain as to any essential requirement of the contract will cause the BID to be rejected as non-responsive. Email Address to submit modifications to quotes for this project is steven.alves@usda.gov.

Vets4212Reporting Offerers must complete the following report, if required. See reporting requirements at: [https:// www.dol.gov/agencies/vets/programs/vets4212](https://www.dol.gov/agencies/vets/programs/vets4212).

- ☐ My firm had a qualifying Federal Contract in 2020 and has complied with the reporting requirements.
- ☐ My firm did not have a qualifying Federal Contract in 2020 and is therefore exempt from the reporting requirements.

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO. 12445126B0010	2. TYPE OF SOLICITATION ☒ SEALED BID (IFB) ☐ NEGOTIATED (RFP)	3. DATE ISSUED 03/02/2026	PAGE OF PAGES 1 3	

IMPORTANT -- The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.		5. REQUISITION/PURCHASE REQUEST NO. 1162102	6. PROJECT NO.
7. ISSUED BY USDA-FS CSA EAST 11 1720 PEACHTREE ST NW STE 876S ATLANTA GA 30309-2449	CODE 4451	8. ADDRESS OFFER TO steven j alves; steven.alves@usda.gov cc; adam doyle; adam.doyle@usda.gov Email Subj Line: 12445126B0010_CO Name_BID Call 859-745-3131 to confirm receipt	
9. FOR INFORMATION CALL: 	a. NAME ADAM DOYLE	b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS) 859-745-3131	

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder."

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying no., date)

Description Summation

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR Part 12. This announcement constitutes the only solicitation; offers are being requested, and a separate written solicitation will not be issued.

Solicitation number 12445126B0010 is issued as a Invitation for Bid (IFB) to This project will include elements from two separate designs: complete replacement of existing distribution lines (Package 001) and new potable water supply line (Package 002) at Lake Wedington Recreation Area, Fayetteville, Arkansas.

Disclosure of the Magnitude of Construction Projects: The Magnitude of this project is between \$1,000,000 and \$2,000,000.

This acquisition is set aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

The applicable North American Industry Classification Standard Code is 237110 - Water and Sewer Line and Related Structures Construction. The small business size standard is \$45 million. This acquisition is a Total Small Business Set-Aside. All responsible sources may submit a quotation which will be considered by the agency.

Statement of Requirement: This project will include elements from two separate designs: complete replacement of existing distribution lines (Package 001) and new potable water supply line (Package 002). The distribution system includes demolition of existing lines and valves and installation of approximately 16,000 linear feet of waterline (sizes range from 1-inch to 6-inch) from the existing Forest Service 22,000-gallon water storage tank to the day-use area and campground. The supply line includes installation of approximately 6000 linear feet of 3-inch waterline from Krie Road to the existing Forest Service 22,000-gallon water storage tank.

Project Location: Lake Wedington Recreation Area, Fayetteville, Arkansas; Ozark-St. Francis National Forests. entrance gate to Lake Wedington Rec Area (west of Fayetteville, AR -off AR State Hwy 16). See Attachment 001through 003 for complete details.

Schedule and Deadlines:

Site Visit: 10 Mar 2026, 1000CT. Offerors are highly encouraged to attend the site visit. Meet at the entrance gate to Lake Wedington Rec Area (west of Fayetteville, AR - off AR State Hwy 16). USFS Point of Contact is Danny Sims (479) 223-2176, danny.sims@usda.gov.

RVSP is requested by 07 Mar 2026 so we don't leave anyone behind!!!

Questions Deadline: 27 Mar 2026. Questions shall be submitted via email to steven.alves@usda.gov; cc: adam.doyle@usda.gov and are due no later than March 27th, 2026. The subject line should read: 12445126B0010 QUESTION.

Bids Deadline: 24 Apr 2026 - 1000 CT. All bids shall be received by 1000 CT and emailed to steven.alves@usda.gov cc: adam.doyle@usda.gov. Subject Line: 12445126B0010 BID Co. Name

Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 90 calendar days from the date specified for receipt of offers.

Period of Performance: 160 days after award/Completion no later than 30 Sep 2026

Continued ...

11. The Contractor shall begin performance within <u>10</u> calendar days and complete it within <u>160</u> calendar days after receiving ☒ award, ☐ notice to proceed. The performance period is ☐ mandatory ☒ negotiable. (See <u>NO LATER THAN 30 SEP 2026</u> .)	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES", indicate within how many calendar days after award in Item 12b.) ☒ YES ☐ NO	12b. CALENDAR DAYS 50

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 2 copies to perform the work required are due at the place specified in Item 8 by 1000 (hour) local time 04/13/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 90 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)	15. TELEPHONE NO. (Include area code)
	16. REMITTANCE ADDRESS (Include only if different than item 14.)
CODE	FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in item 13d. Failure to insert any number means the offeror accepts the minimum in item 13d.)

AMOUNTS

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGEMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.										
DATE.										
20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)					20b. SIGNATURE				20c. OFFER DATE	

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA	
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY USDA-FS CSA EAST 11 1720 PEACHTREE ST NW STE 876S ATLANTA GA 30309-2449	CODE 4451	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return 1 _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)	31a. NAME OF CONTRACTING OFFICER (Type or print) STEVEN J. ALVES
30b. SIGNATURE	30c. DATE
	31b. UNITED STATES OF AMERICA BY
	31c. DATE

CONTINUATION SHEET

REFERENCE NO. OF DOCUMENT BEING CONTINUED
12445126B0010

PAGE 3 OF 3

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0001	Package 001 Distribution System Attachment 2- Package 001 Distribution System (contains the following) -002 Attachment 001 Schedule B 081005 BOS-CON-WED Water Const 724033 Dist SOI -002 Attachment 002 081005 BOS-CON-WED Water Const 724033 Dist Specs -002 Attachment 003 081005 BOS-CON-WED Water Const 724033 Dist Dwgs -002 Attachment 004 081005 BOS-CON-WED Water Const 724033 Dist Line Pipe Sch -002 Attachment 005 Davis-Bacon Act WD AR20260058 Washington County				Compete and return Schedule B with SF1442
0002	Package 002 Supply System Attachment 3- Package 002 Supply System (contains the following) -003 Attachment 001 Schedule B 081005 BOS-CON-WED Water Const 724033 Supply SOI -003 Attachment 002 081005 BOS-CON-WED Water Const 724033 Supply Specs -003 Attachment 003 081005 BOS-CON-WED Water Const 724033 Supply Dwgs -003 Attachment 004 Davis-Bacon Act WD AR20260058 Washington County				Compete and return Schedule B with SF1442

TASK ORDER AND CONTRACT CLAUSE/PROVISIONS UPDATE

14 MAR 2025

Background: Section 2 of Executive Order 14148, “Initial Rescissions of Harmful Executive Orders and Actions,” dated January 20, 2025 (90 FR 8237), revoked Executive Order 14057, “Catalyzing Clean Energy Industries and Jobs Through Federal Sustainability,” dated December 8, 2021. Section 2 of Executive Order 14208, “Ending Procurement and Forced Use of Paper Straws,” dated February 10, 2025 (90 FR 9585), directs agencies to take appropriate action to eliminate policies designed to disfavor plastic straws.

AND

Background: Executive Order (E.O.) 14173, “Ending Illegal Discrimination and Restoring Merit-Based Opportunity,” revoked E.O. 11246, “Equal Employment Opportunity.” Several FAR provisions promulgated to enforce E.O. 11246 are inconsistent with the direction of the President (see FAR subpart 22.8 and associated provisions and clauses as prescribed at FAR 22.810).

The following changes are made to this TASK ORDER/CALL / OR CONTRACT:

1. When issuing new solicitations or contracts do not include any of the following provisions and clauses:

· Paragraph (c) of 52.222-9, Apprentices and Trainees (include paragraphs (a) and (b))

- 52.204-8 Annual Representations and Certifications (JAN 2025)
- 52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services (MAY 2024)
- 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025)
- 52.213-4 Terms and Conditions—Simplified Acquisitions (Other Than Commercial Products and Commercial Services) (JAN 2025)
- 52.222-21, *Prohibition of Segregated Facilities*
- 52.222-22, *Previous Contracts and Compliance Reports*
- 52.222-23, *Notice of Requirement for Affirmative Action To Ensure Equal Employment Opportunity for Construction*
- 52.222-24, *Preaward On-Site Equal Opportunity Compliance Evaluation*
- 52.222-25, *Affirmative Action Compliance*
- 52.222-26, *Equal Opportunity*
- 52.222-27, *Affirmative Action Compliance Requirements for Construction*
- 52.222-29, *Notification of visa denial*
- 52.223-1 Biobased Product Certification (MAY 2024)
- 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024)
- 52.223-10 Waste Reduction Program (MAY 2024)
- 52.223-19, Compliance with Environmental Management Systems (MAY 2011)
- 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation (DEC 2016)
- 52.223-23, Sustainable Products and Services (MAY 2024)

2. When issuing new solicitations or contracts include the following updated provisions and clauses, if applicable:

- 52.204-8, *Annual Representations and Certifications (JAN 2025) (DEVIATION FEB 2025)*
- 52.212-3, *Offeror Representations and Certifications—Commercial Products and Commercial Services (MAY 2024) (DEVIATION FEB 2025)*
- 52.212-5, *Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)*
- 52.213-4, *Terms and Conditions—Simplified Acquisitions (Other Than Commercial Products and Commercial Services) (JAN 2025) (DEVIATION FEB 2025)*
- 52.223-1 Biobased Product Certification (MAY 2024) (DEVIATION FEB 2025)
- 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024) (DEVIATION FEB 2025)
- 52.223-10 Waste Reduction Program (MAY 2024) (DEVIATION FEB 2025)
- 52.223-23, Sustainable Products and Services (MAY 2024 (DEVIATION FEB 2025))
- 52.244-6, *Subcontracts for Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)*

3. When issuing new solicitations, include the following notice:

“System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.”

CONTINUATION SHEET		REFERENCE NO. OF DOCUMENT BEING CONTINUED		PAGES	
NAME OF OFFEROR OR CONTRACTOR					
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT

52.223-23 Sustainable Products and Services (May 2024)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) ([7 CFR 3201.2](#)).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. ([42 U.S.C. 6903](#)).

Sustainable products and services means products and services that are subject to and meet the following applicable statutory mandates and directives for purchasing:

(1) *Statutory purchasing programs.*

(i) Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines ([42 U.S.C. 6962](#)) ([40 CFR part 247](#)) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

(ii) Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products ([42 U.S.C. 8259b](#)) ([10 CFR part 436, subpart C](#)) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).

(iii) Biobased products meeting the content requirement of the USDA under the BioPreferred® program (7 U.S.C. 8102) ([7 CFR part 3201](#)) (<https://www.biopreferred.gov>).

(iv) Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone ([42 U.S.C. 7671l](#)) ([40 CFR part 82, subpart G](#)) (<https://www.epa.gov/snap>).

(2) *Required EPA purchasing programs.*

(i) WaterSense® labeled (water efficient) products and services (<https://www.epa.gov/watersense/watersense-products>).

(ii) Safer Choice-certified products (products that contain safer chemical ingredients) (<https://www.epa.gov/saferchoice/products>).

(iii) Product and services that meet EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023 (<https://www.epa.gov/greenerproducts/recommendations-specifications-standards-and-ecolabels-federal-purchasing>).

(b) *Requirements.*

(1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

(2) The Contractor shall ensure that the sustainable products and services required by this contract are—

(i) Delivered to the Government;

(ii) Furnished for use by the Government;

(iii) Incorporated into the construction of a public building or public work; and

(iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

(3)

(i) Except as provided in paragraph (b)(3)(ii) of this clause, sustainable products and services must meet the applicable standards, specifications, or other program requirements at time of BID or offer submission; and

(ii) Sustainable products and services must meet the EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023.

(c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which purchasing programs apply to a specific product or service.

End of clause

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
---------------------------	---	-------

NAME OF OFFEROR OR CONTRACTOR

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
----------	-------------------	----------	------	------------	--------

REVOLUTIONARY FAR OVERHAUL (RFO) 25-15 COMPLIANCE

The contracting officer must insert the clauses in Table 1 in solicitations and contracts when a fixed-price construction contract or a fixed-price dismantling, demolition, or removal of improvements contract is contemplated, and the contract amount is expected to exceed the simplified acquisition threshold. The Table 1 clauses may be used for contracts valued at or below the simplified acquisition threshold.

Clause Title

- 52.236-2 Differing Site Conditions
- 52.236-3 Site Investigation and Conditions Affecting the Work
- 52.236-6 Superintendence by the Contractor
- 52.236-8 Other Contracts
- 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements
- 52.236-10 Operations and Storage Areas
- 52.236-12 Cleaning Up
- 52.236-5 Material and Workmanship
- 52.236-11, Use and Possession Prior to Completion
- 52.236-13 Accident Prevention
- 52.236-15 Schedules for Construction Contracts
- 52.236-17 Layout of Work

Description

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR Part 12. This announcement constitutes the only solicitation; offers are being requested, and a separate written solicitation will not be issued.

Solicitation number 12445126B0010 is issued as a Invitation for Bid (IFB) to This project will include elements from two separate designs: complete replacement of existing distribution lines (Package 001) and new potable water supply line (Package 002) at Lake Wedington Recreation Area, Fayetteville, Arkansas.

52.228-1 Bid Guarantee (Sept 1996): Required. See provision.

FAR 52.228-15 Performance and Payment Bonds-Construction (Jun 2020): Both required 100% of original contract award price. Due 5 days **after the award**. Irrevocable letter or credit or Payment Bond form SF-25A & Performance Bond Form SF-25 are allowed per FAR 52.228-13.

Disclosure of the Magnitude of Construction Projects: The Magnitude of this project is between \$1,000,000 and \$2,000,000.

This acquisition is set aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

The applicable North American Industry Classification Standard Code is **237110 - Water and Sewer Line and Related Structures Construction**. The small business size standard is \$45 million. This acquisition is a Total Small Business Set-Aside. All responsible sources may submit a quotation which will be considered by the agency.

Statement of Requirement

This project will include elements from two separate designs: complete replacement of existing distribution lines (Package 001) and new potable water supply line (Package 002).

The distribution system includes demolition of existing lines and valves and installation of approximately 16,000 linear feet of waterline (sizes range from 1-inch to 6-inch) from the existing Forest Service 22,000-gallon water storage tank to the day-use area and campground.

The supply line includes installation of approximately 6000 linear feet of 3-inch waterline from Krie Road to the existing Forest Service 22,000-gallon water storage tank.

Project Location: Lake Wedington Recreation Area, Fayetteville, Arkansas; **Ozark-St. Francis National Forests**. entrance gate to Lake Wedington Rec Area (west of Fayetteville, AR - off AR State Hwy 16). See Attachment 001through 003 for complete details.

Technical data and supporting documentation: The following documents are included as attachments to this solicitation and can be accessed via the “Attachments/Links” section of the SAM.gov posting:

Attachment 1 - Solicitation Terms and Conditions

Attachment 2- Package 001 Distribution System (contains the following)

002 Attachment 001 Schedule B 081005 BOS-CON-WED Water Const 724033 Dist SOI

002 Attachment 002 081005 BOS-CON-WED Water Const 724033 Dist Specs

002 Attachment 003 081005 BOS-CON-WED Water Const 724033 Dist Dwgs

002 Attachment 004 081005 BOS-CON-WED Water Const 724033 Dist Line Pipe Sch

002 Attachment 005 Davis-Bacon Act WD AR20260058 Washington County

Attachment 3- Package 002 Supply System (contains the following)

003 Attachment 001 Schedule B081005 BOS-CON-WED Water Const 724033 Supply SOI

003 Attachment 002 081005 BOS-CON-WED Water Const 724033 Supply Specs

003 Attachment 003 081005 BOS-CON-WED Water Const 724033 Supply Dwgs

003 Attachment 004 Davis-Bacon Act WD AR20260058 Washington County

See “Attachment 1 - Solicitation Terms and Conditions- “Lake Wedington Waterline Construction, ARKANSAS” for applicable clauses, instructions, and evaluation criteria.

ATTACHMENT 001**Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions**

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
☐ Alternate I (Nov 2025) of 52.212-4

This is a commercial construction acquisition. FAR 52.212-4 is amended as follows:

(b) *Inspection/Acceptance*. Inspection and Acceptance will be conducted in accordance with FAR 52.246-12, Inspection of Construction (Aug 1996).

(d) *Changes*. Changes will be handled in accordance with the following FAR clause(s):

- ☐ FAR 52.243-4, Changes (Nov 2025)
☐ FAR 52.243-5, Changes and Changed Conditions (Nov 2025)

(o) FAR 52.246-21, Warranty of Construction is applicable to this contract.

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

52.222-50 Combating Trafficking in Persons (Nov 2025)

- ☐ Alternate I (Nov 2025) of 52.222-50

52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)

52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)

- 52.233-3 Protest After Award (Sep 2025)
- 52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
- 52.240-91 Security Prohibitions and Exclusions (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.240-91
- 52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

- ☒ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
- ☐ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☐ 52.204-91 Contractor identification (Nov 2025)
- ☐ 52.214-27 Price Reduction for Defective Certified Cost or Pricing Data-Modifications-Sealed Bidding (Jun 2020)
- ☐ 52.214-29 Subcontractor Certified Cost or Pricing Data-Modifications-Sealed Bidding (Jun 2020)
- ☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
 - ☒ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
- ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
 - ☐ Alternate I (Mar 2020).
- ☒ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
- ☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
 - ☐ Alternate III (Nov 2025) of 52.219-9.
 - ☐ Alternate IV (Nov 2025) of 52.219-9
- ☒ 52.219-14 Limitations on Subcontracting (Nov 2025)
- ☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
- ☒ 52.219-33 Nonmanufacturer Rule (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)

- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
 - ☐ Alternate I (May 2008) of 52.223-9
- ☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☒ 52.223-23 Sustainable Products and Services
- ☐ 52.224-3 Privacy Training (Jan 2017)
 - ☐ Alternate I (Jan 2017) of 52.224-3
- ☐ 52.225-1 Buy American-Supplies (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.225-3.
 - ☐ Alternate III (Nov 2025) of 52.225-3.
 - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☐ 52.240-92 Security Requirements (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.240-92

☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025) ☐

52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025) ☐

Alternate I (Apr 2023) of 52.247-64.

☐ Alternate II (Nov 2021) of 52.247-64

☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)

The Contractor shall comply with the following FAR Clauses for Commercial Construction.

52.222-6 Construction Wage Rate Requirements
 52.222-7 Withholding of Funds
 52.222-8 Payrolls and Basic Records
 52.222-9 Apprentices and Trainees
 52.222-10 Compliance with Copeland Act Requirements
 52.222-11 Subcontracts (Labor Standards)
 52.222-12 Contract Termination-Debarment
 52.222-13 Compliance with Construction Wage Rate Requirements and Related Regulations.
 52.222-14 Disputes Concerning Labor Standards
 52.222-15 Certificate of Eligibility
 52.228-12 Prospective Subcontractor Requests for Bonds
 52.228-15 Performance and Payment Bonds
 52.236-5 Material and Workmanship

The following clauses are applicable when checked:

- ☐ 52.222-30 Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Pricing Method (Aug 2018)
- ☐ 52.222-31 Construction Wage Rate Requirements-Price Adjustment (Percentage Method) (Aug 2018)
- ☐ 52.222-32 Construction Wage Rate Requirements-Price Adjustment (Actual Method) (Nov 2025)
- ☒ 52.222-55 Minimum Wages for Construction Workers under Executive Order 14026 (Nov 2025)
- ☐ 52.223-2 Reporting of Biobased Products under Service and Construction Contracts (Nov 2025)
- ☒ 52.225-9 Buy American-Construction Materials (Nov 2025)
 (b)(2) none
- ☐ Alternate I (Oct 2022) of 52.25-9
- ☐ 52.225-11 Notice of Buy American Requirement-Construction Materials under Trade Agreements (Nov 2025)
- ☐ Alternate I (Nov 2025) of 52.225-11
- ☐ Alternate II (Oct 2022) of 52.225-11

- ☒ 52.228-2 Additional Bond Security (Oct 1997)
- ☒ 52.228-5 Insurance-Work on Government Installation (Jan 1997)
- ☒ 52.228-11 Individual Surety-Pledge of Assets (Feb 2021)
- ☐ 52.228-13 Alternative Payment Protections (Jul 2020)
- ☒ 52.228-14 Irrevocable Letter of Credit (Nov 2014)
- ☒ 52.228-15 Performance and Payment Bonds-Construction (Jun 2020)
- ☒ 52.228-17 Individual Surety-Pledge of Assets (Bid Guarantee) (Feb 2021)
- ☒ 52.236-2 Differing Site Conditions (Jul 2025)
- ☒ 52.236-3 Site Investigation and Conditions Affecting the Work (Jul 2025)
- ☒ 52.236-6 Superintendent by the Contractor (Jul 2025)
- ☒ 52.236-7 Permits and Responsibilities (Jul 2025)
- ☒ 52.236-8 Other Contracts (Jul 2025)
- ☒ 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (Jul 2025)
- ☒ 52.336-10 Operations and Storage Areas (Jul 2025)
- ☒ 52.236-11 Use and Possession Prior to Completion (Jul 2025)
- ☒ 52.236-12 Cleaning Up (Jul 2025)
- ☒ 52.236-13 Accident Prevention (Jul 2025)
 - ☒ Alternate I (Nov 1991) of 52.236-13
- ☐ 52.236-14 Availability and Use of Utility Services (Jul 2025)
- ☒ 52.236-15 Schedules for Construction Contracts (Jul 2025)
- ☐ 52.236-16 Quantity Surveys (Jul 2025)
 - ☐ Alternate I (Apr 1984) of 52.236-16
- ☒ 52.236-17 Layout of Work (Jul 2025)
- ☒ 52.236-21 Specifications and Drawings for Construction (Jul 2025)
 - ☒ Alternate I (Apr 1984) of 52.236-21
 - ☐ Alternate II (Apr 1984) of 52.236-21
- ☒ 52.242-14 Suspension of Work (Apr 1984)
- ☒ 52.248-3 Value Engineering (Oct 2025)
 - ☐ Alternate I (Apr 1984) of 52.248-3

AGAR Clauses**Definitization of Equitable Adjustments for Change Orders - 436.101-4 Advance Notices and Solicitations**

(b) Solicitation notices posted for construction contracts must include a statement that, “Pursuant to FAR 36.101-4(b), information regarding USDA’s definitization of equitable adjustments for change orders under construction contracts may be found at FAR 36.211 | USDA. USDA’s procedures that apply to the definitization of equitable adjustments for change orders under construction contracts may be found in 443.304 -70

452.204–70 Modification for Contract Closeout (Nov 2025)

- (a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The Contracting Officer shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.
- (b) Upon contract closeout for contracts utilizing SAP: if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The Contracting Officer may also request a “Contractor Release of Claims” be completed by the contractor, although not required for contracts and orders using SAP.) If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 60 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.
- (c) Upon contract closeout for contracts utilizing anything other than cost reimbursement, if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and a “Contractor Release of Claims” and will be required to provide a signature on both forms. If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 120 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment. (End of Clause)

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.

- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal antidiscrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.
- (b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.
- (c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.
- (d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.
- (e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.
- (f) The Contractor must include the provisions of this clause in all subcontract solicitations.
- (g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default. (End of Clause)

452.232-71 Progress Payments for Commercial Construction Contracts (Dec 2025)

- (a) *Contractor entitlement to progress payments.* The Contractor may request progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished that meets the standards of quality established under the contract, as approved by the Contracting Officer.

(b) *Computation of amounts.* Progress payments will be authorized when the payment requested is properly due in accordance with this contract; the work will be performed in accordance with the contract; and there has been no impairment or diminution of the Government's security under this contract. The Contracting Officer may authorize consideration of:

- (3) Materials delivered on site and preparatory work;
- (4) Materials delivered to the Contractor at locations other than the site, if: Specifically authorized by the contract; and

The Contractor provides satisfactory evidence of title and intended use in the contract.

(c) *Contractor request for progress payments.* The Contractor's request for progress payments shall include the following:

- (1) An itemization of the amounts requested, related to the various elements of work required by the contract;
- (2) A listing of the amount included for work performed by each subcontractor;
- (3) A listing of the total amount of each subcontract;
- (4) A listing of the amounts previously paid to each subcontractor; and
- (5) Additional supporting data in a form and detail required by the Contracting Officer.

(d) *Contractor Certification.* Each request for progress payment shall be accompanied by the following certification:

I hereby certify, to the best of my knowledge and belief, that—

- (1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;
- (2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;
- (3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and
- (4) This certification is not to be construed as final acceptance of a subcontractor's performance.

(name)
(title)
(date)

(e) *Access for verification of payment entitlement.* To verify the Contractor's entitlement to progress payments under this contract, the Contractor shall provide the Government, upon request and during normal business hours, access to the following:

- (1) Records and Documentation:

- (i) Certified progress payment requests and supporting documentation;
 - (ii) Subcontractor and supplier invoices, payment records, and lien waivers;
 - (iii) Updated schedule of values and progress schedules;
 - (iv) Quality assurance and inspection reports;
 - (v) Payroll records, if applicable under labor provisions.
- (2) Facilities and Worksite Access:
- (i) Physical access to the construction site for inspection of work progress;
 - (ii) Access to off-site storage locations for materials billed but not yet incorporated into the work; or
 - (iii) Access to any fabrication facilities where contract-related work is being performed.
- (3) Access to electronic invoicing or project management systems used to track progress and payments, if such systems are used in contract performance.
- (f) *Dates for payment.* A progress payment under this clause is a contract progress payment under the Prompt Payment clause of this contract, and except as provided in paragraph (g) of this clause, approved requests shall be paid within 30 days of submittal of a proper request for payment.
- (g) *Liquidation of progress payments.* Progress payments shall be liquidated by deducting from the payment of each item the total unliquidated amount of progress payments made for that separately priced unit of that line item. The liquidation amounts for each line item shall be clearly delineated in each request for progress payment submitted by the Contractor.
- (h) *Security for progress payments.* In the event the Contractor fails to provide adequate security as required in this contract, no progress payment shall be made under this contract. Upon receipt of adequate security, progress payments shall be made, including all previous payments to which the Contractor is entitled, in accordance with the terms of the contract. If at any time the Contracting Officer determines that the security provided by the Contractor is insufficient, the Contractor shall promptly provide such additional security as the Contracting Officer determines necessary. In the event the Contractor fails to provide such additional security, the Contracting Officer may collect or liquidate such security that has been provided, and suspend further payments to the Contractor; the Contractor shall repay to the Government the amount of unliquidated progress payments as the Contracting Officer at his sole discretion deems repayable.
- (i) *Special terms regarding termination for cause.* If this contract is terminated for cause, the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments. The Government shall be liable for no payment except as provided by the Termination for Cause paragraph of the clause at Federal Acquisition Regulation 52.212-4, Contract Terms and Conditions—Commercial Products and Commercial Services.
- (j) *Reservation of rights.*

- (1) No payment, vesting of title under this clause, or other action taken by the Government under this clause shall-
 - (i) Excuse the Contractor from performance of obligations under this contract; or (ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.
 - (2) The Government's rights and remedies under this clause-
 - (i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and
 - (ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.
- (k) *Refund of unearned amounts.* If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall- (1) Notify the Contracting Officer of such performance deficiency; and (2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8th day after the date of receipt of the unearned amount until-
- (i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or
 - (ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.
- (l) *Retainage.* If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.
- (m) *Title, liability, and reservation of rights.* All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-
- (1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

- (2) Waiving the right of the Government to require the fulfillment of all the terms of the contract.
- (3) The Government's rights and remedies under this clause-
 - (i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and
 - (ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(n)*Reimbursement for bond premiums.* In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (l) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(o)*Final payment.* The Government shall pay the amount due the Contractor under this contract after-

- (1) Completion and acceptance of all work;
- (2) Presentation of a properly executed voucher; and
- (3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 ([31 U.S.C.3727](#) and [41 U.S.C. 6305](#)).

(p)*Limitation because of undefinitized work.* Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.
(End of clause)

Other Requirements

FAR 28.307-2 Liability.

- (a) Workers' compensation and employer's liability. Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they must be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 must be required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers. (See 28.305(c) for treatment of contracts subject to the Defense Base Act.)
- (b) General liability. (1) The contracting officer must require bodily injury liability insurance coverage written on the comprehensive form of policy of at least \$500,000 per occurrence. (2) Property damage liability insurance must be required only in special circumstances as determined by the agency.
- (c) Automobile liability. The contracting officer must require automobile liability insurance written on the comprehensive form of policy. The policy must provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States must provide coverage of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage. The amount of liability coverage on other policies must be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.
- (d) Aircraft public and passenger liability. When aircraft are used in connection with performing the contract, the contracting officer must require aircraft public and passenger liability insurance. Coverage must be at least \$200,000 per person and \$500,000 per occurrence for bodily injury, other than passenger liability, and \$200,000 per occurrence for property damage. Coverage for passenger liability bodily injury must be at least \$200,000 multiplied by the number of seats or passengers, whichever is greater.
- (e) Vessel liability. When contract performance involves use of vessels, the contracting officer must require, as determined by the agency, vessel collision liability and protection and indemnity liability insurance.

Solicitation Information

Award Type

It is anticipated that a firm-fixed price contract will be awarded as a result of this IFB.

The Government intends to make one award from this IFB. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this IFB. In lieu of this provision, quotes will be evaluated in accordance with FAR 14.306 based on the criteria listed below. Award will be made to the lowest price that is:

FAR 14.306-1 Responsive

FAR 14.306-2 Responsible

Delivery Information

F.o.b. destination, is requested as the F.O.B. point for all deliverables.

- All offers will be considered F.O.B. Destination unless F.O.B. origin is specified AND estimated shipping costs are included.

The USDA requires delivery of all line items by ([insert date or information on where to find the information \(e.g. in the schedule\)](#)).

Other Information**52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/faroverhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

General Instructions. Each of the parts shall be separate and complete so that evaluation of one may be accomplished independently from evaluation of the other. Bids submitted in response to this solicitation shall be furnished as specified below:

The bids must include the following:

- a. Acknowledgement of solicitation amendments (if any). This can be accomplished by submitting the signed SF-30(s).
- b. Scanned copy of fully executed Bid Guarantee (Standard Form 24 and Power of Attorney)
- c. Package 001 and 002 Schedule B completed (Package Attachment 1- Schedule of Items- Format- Adobe PDF or Microsoft Excel sheet provided)

Schedule and Deadlines:

Site Visit: 10 Mar 2026, 1000CT. Offerors are **highly** encouraged to attend the site visit. Meet at the entrance gate to Lake Wedington Rec Area (west of Fayetteville, AR - off AR State Hwy 16). USFS Point of Contact is Danny Sims (479) 223-2176, danny.sims@usda.gov. RVSP is requested by 07 Mar 2026 so we don't leave anyone behind!!!

Questions Deadline: 27 Mar 2026. Questions shall be submitted via email to steven.alves@usda.gov; cc: adam.doyle@usda.gov and are due no later than March 27th, 2026. The subject line should read: *12445126B0010 QUESTION*.

Bids Deadline: 24 Apr 2026 - 1000 CT. All bids shall be received by 1000 CT and emailed to steven.alves@usda.gov cc: adam.doyle@usda.gov. *Subject Line: 12445126B0010 BID_Co. Name*

Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Period of Performance: 160 days after award/Completion no later than 30 Sep 2026

The following provisions are applicable if checked:

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025) ☐
Alternate I (Nov 2025) to 52.204-7
- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025) ☐
- 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.223-4 Recovered Material Certification (May 2008)
- ☐ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☐ 52.222-5 Construction Wage Requirements, Secondary Site of the Work (Nov 2025)
- ☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
- ☐ 52.225-10 Notice of Buy American Requirement- Construction Materials (May 2014)
☐ Alternate I (May 2014) of 52.225-10
- ☐ 52.225-12 Notice of Buy American Requirement-Construction Materials under Trade Agreements (May 2014)
☐ Alternate I (May 2014) of 52.225-12
☐ Alternate II (Nov 2023) of 52.225-12
- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☒ 52.228-1 Bid Guarantee (Sep 1996)
- ☒ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)
- ☐ 52.216-31 Time and Materials/Labor Hour Proposal Requirements - Commercial Acquisition (Nov 2021)
- ☐ 52.217-5 Evaluation of Options (Nov 2025)

- ☒ 52.225-10 Notice of Buy American Requirement - Construction Materials (May 2014)
- ☐ 52.225-12 Notice of Buy American Requirement - Construction Materials under Trade Agreements (May 2014)
- ☐ 52.225-18 Place of Manufacture (Aug 2018)
- ☒ 52.233-2 Service of Protest (Sep 2025)
- ☒ 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

52.228-1 Bid Guarantee (Sept 1996).

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.*, bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds-

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be 20 percent of the bid price or \$3M, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of Provision)

AGAR Provisions**452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)**

(a) By submission of its offer, the offeror certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (2) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal antidiscrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default. (End of Provision)

NOTICE FOR FILING AGENCY PROTESTS

United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.

Attachment 2- Package 001 Distribution System (contains the following)

002 Attachment 001 Schedule B 081005 BOS-CON-WED Water Const 724033 Dist SOI

002 Attachment 002 081005 BOS-CON-WED Water Const 724033 Dist Specs

002 Attachment 003 081005 BOS-CON-WED Water Const 724033 Dist Dwgs

002 Attachment 004 081005 BOS-CON-WED Water Const 724033 Dist Line Pipe Sch

002 Attachment 005 Davis-Bacon Act WD AR20260058 Washington County

Attachment 3- Package 002 Supply System (contains the following)

003 Attachment 001 Schedule B081005 BOS-CON-WED Water Const 724033 Supply SOI

003 Attachment 002 081005 BOS-CON-WED Water Const 724033 Supply Specs

003 Attachment 003 081005 BOS-CON-WED Water Const 724033 Supply Dwgs

003 Attachment 004 Davis-Bacon Act WD AR20260058 Washington County